

		(Complaint ¶18) She then alleges the April 17, 2023 illustration was among the documents she e-signed on 5/17/23. (Complaint ¶20) Accordingly, the demurrer is SUSTAINED as to the 3rd cause of action for Negligence. 4th Cause of Action - Rescission AND 5th Cause of Action - Unfair Competition Defendant argues that both the 4th and 5th causes of action are barred because the fraudulent concealment cause of action fails. In light of the foregoing finding that fraudulent concealment is sufficiently pled, Pacific Life's demurrer to the 4th and 5th causes of action is OVERRULED. The Demurrer is sustained with 14 days leave to amend. However, leave to amend is granted only as to the specific causes of action to which the Demurrer was sustained. Leave to amend is NOT granted to alter/amend other portions of the complaint or to add/amend other causes of action. If plaintiffs seeks leave to amend, such must be done pursuant to <i>CCP §473</i> and the appropriate rules. <i>Pacific Life Insurance Company shall give notice.</i>
7.	Mito's Holdings, Inc. v Deniz Restaurants, LLC25-1534622	(Continued)
8.	Black v. Lutfi 25-1528410	Before the Court are two motions filed by Erick Black (Plaintiff). The first is a Demurrer to the Cross-Complaint (XC) filed by Mohammad Lutfi (Lutfi). The second is a Motion for Judgment on the Pleadings as to the First Amended Complaint (FAC) filed by Plaintiff against Lutfi. For the reasons set forth herein, the Demurrer is OVERRULED and the Motion for Judgment on the Pleadings is DENIED. DEMURRER TO CROSS-COMPLAINT The role of a demurrer is "to test the legal sufficiency of a complaint." (<i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994, citations omitted.) A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (See <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-1405.) On demurrer, a complaint must be liberally construed. (<i>Code of Civil Procedure § 452; Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences drawn from them, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67.) 1. 1st Cause of Action – Declaratory Relief

"The interpretation of a contract is clearly a proper subject of declaratory relief. *Section 1060* provides '[a]ny person interested ... under a contract ... may ... bring an original action ... in the superior court ... for a ... determination of any question of construction or validity arising under the ... contract.' The fact the same issue of contract interpretation is also raised in other causes of action does not in itself bar declaratory relief or summary adjudication of that cause of action." (*S. Cal. Edison Co. v. Superior Ct.* (1995) 37 Cal. App. 4th 839, 846-47)

Here, Lutfi seeks a determination as to whether Black is a valid winner of the sweepstakes. The Court finds this cause of action is sufficiently pled. Accordingly, the demurrer is **OVERRULED** as to the 1st cause of action.

2. 2nd Cause of Action – Breach of Contract

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

The XC alleges "the Official Rules constitute a valid and binding contract." (XC ¶88) A copy is attached as Exhibit A to the XC. Lutfi argues Black breached the contract by "Failing to cooperate and fulfill all the requirements of the Official Rules, including providing validation documents to Cross-Complainant's good faith satisfaction." (XC ¶89(12).) Whether or not Plaintiff's conduct breached the contract is a question of fact and not proper for demurrer.

Accordingly, the demurrer to the 2nd cause of action is **OVERRULED**.

3. 3rd Cause of Action – Fraud

The elements of fraud are: "(a) [a] misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or "scienter"); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638)

Here, Lutfi alleges "Cross-Defendant presented himself at the winner ceremony at TUNER CULT's location in Irvine, California, representing that his name was "Erick Gonzalez" and presenting an Arizona driver's license bearing the name "GONZALEZ, ERICK ALFONSO" and proof of insurance listing 'Erick Gonzalez' as the named insured. (Ex. B at 1-2.)" (XC ¶93) Lutfi alleges these statements and documents were false because Plaintiff's legal name had been changed to Erick Black. (XC ¶94) Lutfi relied on these representations by releasing the \$100,000 vehicle to Plaintiff. (XC ¶98)

The cause of action is sufficiently pled. Plaintiff's arguments that the XC lacks merit are not proper for demurrer. Questions of fact cannot

be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.)

Accordingly, the demurrer to the 3rd cause of action for Fraud is **OVERRULED**.

4. *4th Cause of Action – Unjust Enrichment*

“Unjust enrichment is not a cause of action . . . or even a remedy, but rather a general principle, underlying various legal doctrines and remedies. . . . It is synonymous with restitution. [Citations.] Unjust enrichment has also been characterized as describing the result of a failure to make restitution” (*McBride v. Boughton* (2004) 123 Cal.App.4th 379, 387, citations and quotations omitted).

Although there is no cause of action for unjust enrichment, in ruling on a demurrer, courts ignore erroneous or confusing labels and look to the gravamen of the complaint to determine if a cause of action is stated. (*McBride, supra*, at 385, 387-388.) A court may construe an unjust enrichment claim as one for restitution. (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 231; see also *McBride*, 123 Cal.App.4th at 387-88.)

Here, the Court construes Lutfi’s 4th cause of action as being one for restitution. As a result, it is sufficiently pled.

Plaintiff also argues a claim for restitution cannot be pled where a breach of contract cause of action is pled. However, “A claim for restitution is permitted even if the party inconsistently pleads a breach of contract claim that alleges the existence of an enforceable agreement. (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1389, 137 Cal.Rptr.3d 293.)” (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal. App. 4th 221, 231)

Accordingly, the demurrer to the 4th cause of action for Unjust Enrichment is **OVERRULED**.

MOTION FOR JUDGMENT ON THE PLEADINGS AS TO FAC

In this motion, Plaintiff seeks to have a judgment entered on his FAC based on his assertion the FAC has stated a basis for the causes of action and that Lutfi’s answer has failed to raise a valid affirmative defense.

Judgment on the pleadings in favor of a plaintiff is appropriate when the complaint states facts sufficient to constitute a cause of action and the defendants’ answer does not state facts sufficient to constitute a defense. (*Code of Civil Procedure Section (c)(1)(A)*.) “Where a plaintiff brings such a motion, the Court assumes the defendant could have proven all of the factual allegations in its answer. (*Westly v. Board of Administration* (2003) 105 Cal.App.4th 1095, 1115.) Like demurrers, motions for judgment on the pleadings challenge the legal

		sufficiency of the allegations, not their veracity. (<i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994.) Here, Plaintiff seeks Judgment as to his entire FAC. "A motion for judgment on the pleadings is analogous to a general demurrer." (<i>Westly v. Board of Administration</i> (2003) 105 Cal.App.4th 1095, 1114) "The issue is whether the [pleading] raises an issue that can be resolved as a matter of law." (<i>Ibid.</i>) "A demurrer which attacks an entire pleading should be overruled if one of the counts therein is not vulnerable to the objection." (<i>Bacon v. Wahrhaftig</i> (1950) 97 Cal. App. 2d 599, 605) In Plaintiff's first cause of action, he asserts a claim for Breach of Contract. In Lutfi's first affirmative defense, he asserts the defense of Prevention of Performance. "Prevention of performance by one party to a contract excuses performance by the other party." (<i>Hale v. Sharp Healthcare</i> (2010) 183 Cal.App.4th 1373, 1387) Lutfi alleges "Plaintiff prevented Defendants' performance by providing false banking information, certifying that false information was accurate, and refusing to provide the validation documents necessary to complete a lawful transfer." (1st Aff Defense in Answer to FAC) For purposes of demurrer, the Court assumes these facts will be proven. Therefore, Lutfi has sufficiently pled an affirmative defense to the first cause of action. Plaintiff's argument that the defense lacks merit because "there was and is nothing standing between the Turner Cult and/or American Sweepstakes from paying the prize money" (Motion at 8:27-28) is a question of fact for trial. Accordingly, as a defense to the first cause of action has been sufficiently pled, the Motion for Judgment on the Pleadings is DENIED. <i>Plaintiff is ORDERED to file his answer to the XC within 14 days.</i> <i>Lutfi is ORDERED to give notice of this ruling.</i>
9.	Laguna Beach Unified School District v. National Church Residences of Laguna Beach 25-1518292	Before the Court are the following motions attacking the Second Amended Complaint (SAC) of plaintiff Laguna Beach Unified School District (the "District") : 1) a motion for judgment on the pleadings filed by defendant National Church Residences of Laguna Beach (the "Church"); 2) a motion for judgment on the pleadings filed by defendant National Church Residences ("NCR"); and 3) demurrer filed by defendants Red Mortgage Capital, LLC; Orix Real Estate Capital, LLC and Lument Real Estate Capital, LLC (the "Lenders"). For the reasons set forth below the Church's motion is GRANTED without leave to amend as to the 4th, 5th and 6th causes of action but is otherwise DENIED; NCR's motion is GRANTED without leave to amend as to the 4th and 5th causes of action but is otherwise DENIED, and the Lenders' demurrer is SUSTAINED without leave to amend as to the 4th, 5th and 6th causes of action but is otherwise OVERRULED.